

夏祭り

日本製

UNICRI

CO- UNDER SECRETARY GENERALS:

KEREM VEYSEL DÜZGÜN

HASAN ARİF EGE BASKURT

ACADEMIC ASSISTANT: BEREN BİLGİN

Table Of Content

Table Of Content.....	2
1. Letter from the Secretary General.....	3
2. Letter from Under Secretaries-General.....	4
3. Letter from Under Secretaries-General.....	5
4. Letter from Academic Assistant.....	6
5. Introduction to the Committee.....	7
6. Introduction to the Agenda Item.....	9
6.1 Overview of the Topic.....	9
6.2 Key Terms and Their Definitions.....	10
7. Background and Historical Context.....	11
7.1. The “Unable” state (Capacity Deficit).....	12
8. Current Issues.....	12
8.1. The Issue of Bribery of Judges in the Courts.....	12
9. Causes of Weak Law Enforcement.....	14
9.1. Corruption.....	14
9.2. Weak Political Will.....	15
9.3 Deficiency of Institutional Capacity.....	16
9.4 Terrorism and Armed Conflicts.....	18
10. External Interference in Law Enforcement.....	21
10.1. Political Interference.....	21
10.2. Foreign Influence.....	23
10.3. Economic Pressure.....	24
10.4. Cyber Interference.....	26
11. Human Rights Implications.....	27
11.1. Violations of Fundamental Human Rights.....	27
11.2. Unequal Access to Justice.....	28
11.3. Abuse of Authority.....	31
11.3.1. Article 3.....	31
11.3.2. Article 4.....	31
11.3.3. Article 5.....	32
11.4. Threats to Civilian Safety and Security.....	33
12. Question To Be Addressed.....	35
12.1. The Transnational Enforcement Vacuum (Preventative vs. Reactive Law Enforcement).....	35
12.2. Jurisdictional Friction vs. Shared Security.....	36
12.3. The Limits of Operational Capacity.....	37
12.4. The Asset Recovery Disconnect (The Financial Obstacle).....	37
13. Bibliography.....	38

1. Letter from the Secretary General

Dear Participants,

First of all, it is my utmost pleasure to serve you as the Secretary General for the first edition of ION Model United Nations Conference. I am more than proud for making this conference happen with my colleagues and looking forward to see every attendee.

Essentially MUN's are great opportunities to increase your consultation capabilities, your assertiveness and understand how policy is implemented. I can honestly state that MUN impacted my perspective on life in a positive way. For this reason, it is my mission to transfer the experiences I have gained to the new generation and to ensure that they affect them in the same way.

Lastly as the executive team, in order to put this conference together we really plod away. We really worked hard to burn the soul of IONMUN26. And do not forget ION is the timeless voices for peace.

Sincerely,

Doruk Sapmaz

2. Letter from Under Secretaries-General

Dear Members of the Institute,

Welcome to IONMUN'26. As the Under Secretary-General of the United Nations Interregional Crime and Justice Research Institute, it is a privilege to welcome you to this committee.

Before we begin, I must extend my sincere gratitude to the entire secretariat and organization team. Their dedication and countless hours of unseen work made this conference possible. I am also grateful to IONMUN'26 for supporting committees that require an exceptional level of academic preparation and structural discipline. In that regard, I offer special thanks to our Secretary-General, Doruk Sapmaz, for championing specialized UN agencies within MUN conferences and creating space for rigorous, policy-focused debate.

It is my honor to welcome you to UNICRI at IONMUN'26. I also express my heartfelt thanks to my CO Under Secretary-General Hasan Arif Ege BAŞKURT, and my Academic Assitant Beren BİLGİN. Their support, particularly in the drafting and refinement of our study guide and legal agenda, has been invaluable.

Our agenda focuses on critical challenges in transnational law enforcement, jurisdictional friction, operational capacity limits, and asset recovery systems. You will notice that this study guide is comprehensive. Please do not let its length intimidate you. It functions as a self-contained foundation. You will not need to conduct extensive additional research to participate effectively. As the academy of this committee, we designed a framework that supports your ambitions; therefore, we only ask that you read the guide thoroughly and bring your creative policy solutions to the debate. I look forward to meeting you all and witnessing a committee defined by competitive debate, respectful diplomacy, and memorable collaboration. We will ensure this committee provides a unique academic experience.

My Most Genuine Regards,

Kerem Veysel DÜZGÜN.

Under Secretary-General of the United Nations Interregional Crime and Justice Research Institute

“Düzgün” Kerem

3. Letter from Under Secretaries-General

Dear Delegates of the United Nations Interregional Crime and Justice Research Institute (UNICRI),

It is my utmost pleasure and privilege to welcome you all to this session of UNICRI. As your Under-Secretary-General, I am incredibly honored to guide you through a simulation that will push the boundaries of your academic, legal, and diplomatic capabilities.

Our agenda for this conference addresses one of the most complex, systemic, and urgent crises of the modern era: the structural failures of domestic law enforcement, the critical issue of institutional capacity deficits, and the ever-evolving threats of external interference. UNICRI does not operate on mere political rhetoric or superficial debates; our mandate demands research-driven, highly technical, and legally precise frameworks designed to restore the rule of law while meticulously navigating the delicate balance of state sovereignty.

Throughout our sessions, your primary and most demanding objective will be to construct a comprehensive, legally binding document: The UNICRI Draft Articles. This task is not a standard resolution writing exercise. It is a rigorous legal test. You will be forced to confront the deep-rooted tension between the traditional Westphalian model of absolute state sovereignty and the pragmatic necessity of cooperative sovereignty. You must answer critical questions: How do we empower "unable" states without crossing the line into unlawful foreign intervention? How do we construct bulletproof judicial frameworks that can resist systemic corruption and political co-optation? And how do we shield domestic security infrastructures from modern, gray-zone threats like offensive cyber-interference and asymmetric economic pressure?

This Study Guide has been meticulously drafted to serve as your academic compass, culminating in a highly specific set of *Questions to be Answered (QTBA)*. I strongly advise you to treat these questions not as simple prompts, but as the foundational pillars of your research and the direct structural framework for your draft clauses. We expect nothing less than absolute dedication, deep legal analysis, and a commitment to genuine academic rigor.

Leave generic solutions at the door. Prepare to challenge established norms, debate with legal precision, and approach these complex crises with an analytical mind. I have no doubt that your efforts will result in an exceptionally sophisticated and realistic set of Draft Articles.

I wish you the absolute best of luck in your preparations.

Sincerely,

Hasan Arif Ege Başkurt

Under-Secretary-General of UNICRI

egebaskurt2009@gmail.com

4. Letter from Academic Assistant

Distinguished delegates of the United Nations Interregional Crime and Justice Research Institute (UNICRI),

As the Academic Assistant of the committee, I would like to start my words by stating that it is an honor for me to welcome you all to the UNICRI committee of the IONMUN'26 conference.

First of all, I would like to extend my gratitude to everyone who contributed to the realization of this conference, and extend my gratitude to the secretariat—Doruk SAPMAZ and Mustafa ASLAN—for making it possible for us to be here with this committee.

Before concluding, I would like to express my sincere thanks to our Co-Under-Secretaries Generals Kerem Veysel DÜZGÜN and Hasan Arif Ege BAŞKURT for their guidance, dedication, and huge support throughout the preparation process.

In this committee we have chosen an agenda that includes some of the most pressing issues in international cooperation: cross-border law enforcement, jurisdictional challenges, institutional limitations and mechanisms for asset recovery. This study guide has been prepared to provide you with an in-depth knowledge of these areas. We are waiting for you to read this study guide carefully and be prepared with your solutions.

I hope to see you all prepared and excited for the sessions.

If you do have any questions regarding the procedure, agenda or anything about our committee, do not hesitate to contact me through my personal number or email address below:

5427732046

berenbilgin009@gmail.com

Best Regards,

Beren BİLGİN

5. Introduction to the Committee

The United Nations Interregional Crime and Justice Research Institute (UNICRI) was established in 1968 pursuant to Economic and Social Council Resolution 1086 B of 1965, which urged an expansion of the United Nations activities in crime prevention and criminal justice. The institute is an autonomous institution and is governed by its Board of Trustees.

Working within the broad scope of its mandate to design and implement improved policies and actions in the field of crime prevention and control, the mission of UNICRI is to advance justice, crime prevention, security, and the rule of law in support of peace, human rights, and sustainable development.

UNICRI's work focuses on Goal 16 of the 2030 Agenda for Sustainable Development, which is centered on promoting peaceful, just and inclusive societies, free from crime and violence. Justice, crime prevention, and the rule of law are the basis for fighting poverty and reducing inequalities while enhancing economic growth and stability and protecting the environment. UNICRI supports governments and the international community at large in tackling criminal threats to social peace, development, and political stability.

UNHCR's goals are:

- to advance understanding of crime-related problems;
- to foster just and efficient criminal justice systems;
- to support the respect of international instruments and other standards;
- to facilitate international law enforcement cooperation and judicial assistance.

UNICRI's programs aim to promote national self-reliance and the development of institutional capabilities. To this end, UNICRI provides a one-stop facility offering high-level expertise in crime prevention and criminal justice problems. Technical co-operation is enhanced by the use of action-oriented research to assist in the formulation of improved policies and concrete intervention programmes. Institutional and on-the-job training of specialized personnel form an integral part of UNICRI activities.



UNICRI works in specialized niches and selected fields of crime prevention, justice, security governance, risks and benefits of advances in technologies, counter-terrorism, and social cohesion. UNICRI's programs focus on different areas with the aim of creating and testing new and holistic approaches in preventing crime and promoting justice and development. UNICRI plays a leading role with respect to specific niches and supports/complements the work of other international organizations through its specialized and advanced services.

6. Introduction to the Agenda Item

6.1 Overview of the Topic

The integrity of the global legal order depends entirely on the capacity of sovereign states to enforce the laws they have written. While domestic laws and international treaties draw boundaries around what conduct is illegal and prohibited, they are hollow until such a boundary can actually be policed and prosecuted. The international criminal justice system is currently under severe dual threat: the systemic failure to properly enforce domestic law and systemic interference from external actors to subvert the law in pursuit of corporate, criminal, or geopolitical interests.

The systemic failures to adequately enforce the law from the state itself result in a dangerous governance gap. When the laws are simply not enforced because local judges lack political will, police departments are poorly paid and corrupted, or there is no infrastructure to handle increasingly complex cybercrime and international financial flows, transnational criminal networks quickly fill the void by operating with impunity and by rapidly moving weapons, narcotics, and human beings across international borders from a country with broken enforcement. The ability to enforce the law is further eroded by systemic interference from external parties who put political or economic pressure on the state to modify, suspend, or simply ignore the law. Foreign governments, transnational corporations, international criminal networks, and others all exercise enormous pressure on sovereign states to ignore legal standards in order to further their respective interests. For example, powerful resource extraction firms pressure states to overlook environmental law, and neighboring countries can put immense pressure on small states to turn a blind eye to border crossing violations and the trafficking of illicit goods.

The fundamental state sovereignty concerns involved in the monitoring of domestic law enforcement will become a central element of your discussions, as many countries assert that such interventions are illegitimate.

6.2 Key Terms and Their Definitions

Law Enforcement Capacity refers to the financial, technical, and human resources at the disposal of the state to prevent, investigate, and prosecute the violations of domestic laws of the state.

External Interference refers to unauthorized and coercive actions of foreign states, transnational companies, criminal organizations, or other actors in a country's national legal proceedings.

Governance Vacuum: refers to the absence of significant state institutional presence in an area or a sector that leaves space for illegal organizations to become a 'state within a state.'

Judicial Compromise refers to a condition whereby the national courts, judges, or prosecutors may base their legal judgments on factors such as political pressure, financial bribes, or external threats, rather than solely on the basis of the law.

Transnational Organized Crime refers to a system of continuously functioning associations of persons with common goals, organized and operating on a global level, in order to derive profits from illicit activities.

Regulatory Capture refers to a condition where a regulatory agency established by a state in the public interest instead promotes the business and/or political interest of a special interest group that has substantial influence over the agency.

Institutional Resilience refers to the capacity of the national judicial and law enforcement institutions to remain intact and resist internal and external shocks or corruptive factors without collapsing.

Capacity Building refers to the development and strengthening of skills, intuition, ability, process, and resources an organization and community needs to survive, adapt, and thrive.

7. Background and Historical Context

The modern international legal order remains fundamentally anchored to the Westphalian model of state sovereignty, codified in 1648, which stipulates that a state has absolute and exclusive jurisdiction over its territory and population (Cassel, 2000). Under this classical paradigm, the domestic administration of justice, criminal prosecution, and law enforcement are strictly preserved within a state's *domaine réservé* (internal affairs), legally insulating it from external intervention. For centuries, this model maintained a strict principle of non-intervention, where the sovereign state was the sole arbiter of law and order within its borders.

However, the rapid acceleration of globalization, the digitization of criminal networks, and the transnationalization of security threats have exposed a critical structural vulnerability: the enforcement capacity of a singular state is no longer a purely domestic concern. When a state fails to enforce its laws adequately, it creates a jurisdictional vacuum that can threaten regional and international security. This reality has forced a profound shift from absolute territorial sovereignty toward a model of cooperative sovereignty, governed by a growing body of transnational criminal law (Boister, 2003).

To address crimes that easily bypass physical borders—such as illicit trafficking, cyber warfare, and intellectual property theft—the international community developed "suppression conventions." These multilateral treaties, such as the United Nations Convention against Transnational Organized Crime (UNTOC) and the United Nations Convention against Corruption (UNCAC), legally obligate state parties to criminalize specific conduct within their domestic codes and to actively prosecute or extradite perpetrators under the customary rule of *aut dedere aut judicare* (Gardner, 2018).

This regime assumes that all sovereign states possess equivalent institutional capacity to execute these obligations. In practice, however, the global enforcement apparatus is deeply asymmetric, leading to a critical jurisdictional gap. When a state fails to meet these international standards, academic and legal consensus typically analyzes the failure through two distinct lenses:

7.1. The “Unable” state (Capacity Deficit)

The state possesses the political will to enforce its laws but lacks the necessary technological, infrastructural, or financial resources. This includes deficits in forensic capabilities, digitized border enforcement, secure database management, and judicial training.

7.2. The “Unwilling” state (Institutional Capture)

The state possesses the theoretical infrastructure but suffers from systemic corruption, political co-optation, or institutional decay. In these instances, state apparatuses are actively neutralized or captured by powerful domestic or transnational illicit syndicates, creating "safe havens" of non-enforcement.

8. Current Issues

8.1. The Issue of Bribery of Judges in the Courts

Court personnel are the initial contact point and the providers of information to those who seek to invoke the jurisdiction of the court, whether they are judges, litigants, witnesses, or lawyers. This initial contact leads court users to form their impressions of the judicial system and shapes the confidence they place in the courts. Court personnel are also responsible for the administrative and technical non-judicial tasks that contribute to the outcome of a judicial proceeding. Among other tasks, they manage court facilities, assist with case management, protect evidence, facilitate the appearance of parties and witnesses, and perform a variety of other functions that help avoid postponements and contribute to a professional and timely adjudication process. They help judges with legal research, ensure that decisions are properly announced and published, and maintain case files. They have the potential to undermine the integrity of the judicial process through neglect of duty, abuse of power, or corruption. Therefore, non-judicial court personnel, who constitute the bulk of the judiciary staff, are crucial to any measures that aim at strengthening the integrity and capacity of the judicial system.

There are different approaches adopted in designing selection and appointment procedures of court personnel. A common feature in the majority of good models is that they aim to make the procedures transparent and the appointments merit-based, consistent with the requirements of article 7 of the Convention against Corruption in relation to the public service. To do this, court personnel positions at all levels should be publicly advertised to attract the best applicants, and the final selection should be based on the educational and vocational qualifications of the applicants rather than on nepotism or other inappropriate personal or political considerations.

Professional training courses for court personnel constitute an essential element in the realization and the perception among court users of judicial integrity. 64 Firstly, effective

training can improve trust in the judicial system through improved customer service and transparency. Secondly, training is essential for procedural efficiency and court management. Without well-trained court personnel, judges spend an unnecessary amount of time on administrative tasks, thereby slowing the judicial process. Thirdly, training programs can help reduce incidences of unethical and unprofessional conduct. Fourthly, by increasing professionalism and creating competencies in a variety of areas, the court's capacity and flexibility are enhanced.

As with judges, the salaries of court personnel must be commensurate with their responsibilities. Adequate compensation for their work can assist in reducing incentives for corruption, as recognized in article 7 of the Convention. Although low salaries are not the only cause of corruption, court personnel are likely to be less prone to serious dishonorable acts such as bribery and embezzlement when they receive sufficient compensation and do not have to rely on illicit sources of income. Similarly, providing benefits, such as health and life insurance and/or a retirement plan, allows court personnel to focus on their work rather than having to worry about how to provide for their families. Even in systems where corruption is relatively low, adequate compensation helps to raise employee morale and overall job satisfaction, which, in turn, leads to a more productive workplace and a willingness on the part of court personnel to work proactively towards maintaining high standards of conduct. Appropriate training and increased professionalism should result in salary adjustments and other incentives. As will be seen in the following sections, putting in place effective systems of case management and monitoring are also essential tools in reducing the potential for corruption amongst court staff. Ethical standards for court personnel are as important as ethical standards for judges. Establishing ethical standards for court personnel is a relatively new but growing trend in judiciaries across the world and is consistent with article 8 of the Convention. The Principles of Conduct for Judicial Personnel that were adopted by the Judicial Integrity Group in 2005 prescribe detailed standards of conduct with respect to fidelity to duty, confidentiality, conflicts of interest, and performance of duties. The adoption of a code of conduct should be followed by its dissemination among, or at least its availability to, court users. Training court personnel in the code of conduct is an essential method of informing them of their ethical obligations. Another step should be the establishment of an appropriate mechanism to provide advisory services to court personnel on potential or actual ethical issues.

9. Causes of Weak Law Enforcement

9.1. Corruption

Corruption in a very broad sense is commonly defined as the abuse of public office for private gain. This generic definition captures a wide scope of behavior and resonates in public discourse, yet this wide range obscures the complexity and contextual variations of corruption, thus limiting the utility of the definition in research and public policy.

Notwithstanding the lack of consensus around a precise definition, several consistent concepts are evident in the literature that provide a solid foundation for and a consistent understanding of corruption in law enforcement.

First, this corruption includes both individual behavior and group/organizational behavior. Common perceptions often view corruption in law enforcement as aberrant behavior of unprofessional individuals. However, analyses consistently highlight social and organizational dimensions of such corruption. This expansion to include group and organizational behavior highlights relationships between corruption in law enforcement and broader societal and institutional conditions. In this regard, the behaviour and attitudes of police officers are a product of the environment within which they work.

Second, corruption in law enforcement is motivated by a range of different objectives. Private gain is identified in some analyses as the principal motivation for corrupt behavior. In contexts where officers are underpaid or work in poor conditions, corruption may be driven by economic necessity and to supplement inadequate incomes. Beyond financial gain, other forms of benefit may motivate corrupt behavior, such as status, influence, prestige, sexual favors, or future support. Moreover, beyond an individual, corruption in law enforcement includes behavior motivated by intended group or organizational benefits, which could include prestige or performance-related organizational standing.

Third, corruption in law enforcement encompasses a wide range of behaviors and actions. This includes both acts and failures to act. Moreover, corrupt behavior in law enforcement extends beyond acts or omissions that are formally proscribed and illegal and includes behavior such as unethical practices, favoritism and clientelism, and systemic deficiencies that perpetuate inequality, injustice, and unfair distribution of resources. Underpinning the wide range of acts of omission falling within the ambit of corruption in law, conceptual

overview of corruption in law enforcement 13. Enforcement is the consistent characteristic that these acts or behaviors affect society's trust in law enforcement institutions and impede equitable development.

9.2. Weak Political Will

If variations of law enforcement are not necessarily the outcome of weak institutions or corruption, a focus on actors, organizational (formal and informal) goals, and constellations of interests is needed. All modes of incomplete enforcement need to be understood as the attempt by public organizations and actors to establish themselves as legitimate authorities and to respond to competing objectives. Weber's "probability of physical or psychological coercion" is in the hands of enforcers who can apply existing legal rules in one way or another, do so selectively, or suspend them completely. This is associated with the nature of the enforcement task, which has a salient characteristic: it has a much lower visibility than other forms of regulation such as the production of laws or the design of institutions.

Enforcing the law entails discretion or discretionary power. Discretion over the laws' reach is constitutive of state organizations, and state servants' discretionary power "involves the power to exert choice among a range of alternatives between which the law does not discriminate. By bringing discretion to the fore, two important features of law enforcement measures can be identified. First, enforcing the law is a bureaucratic and political choice that involves flexibility to interpret and execute actions. Such discretion accounts for different forms of law enforcement: full or effective enforcement, selective enforcement, forbearance, or non-enforcement. Departing from the common definition of law enforcement as a system of state efforts to achieve compliance, actions that tamper with enforcement, especially those that lead to non-enforcement, can be defined not in terms of inaction ("turning a blind eye") but as a series of practices that make use of discretionary power. Such practices block, alter, modify, falsify, distort, or eliminate actions prescribed by law, often relying on gaps or loopholes. Studying these practices becomes possible when law enforcement is no longer seen as either complete or failed, but instead understood as a fluid spectrum of options.

Second, the exercise of discretionary power over law enforcement mechanisms also means an exercise of sovereign power. Drawing on research that focuses on professions such as those of prison guards, prosecutors, and other street-level bureaucrats, decisions about the different ways of enforcing the law "participate in, and exemplify, the logic of sovereignty and its

complex relationship with legality”. In that sense, choices about enforcing the law are decisions aimed at establishing a specific social order, whether in the context of organizations such as prisons, bureaucracies, police stations, or courts or when they come into contact with society. This insight has long been established in organizational sociology, but it often slips out of focus. Taken together, these two features of law enforcement decisions embedded in discretionary power and aimed at establishing social order shift the focus from a problem of weak institutions and corruption to the domain of political decisions and the need of actors to achieve specific objectives or solve pressing problems.

9.3 Deficiency of Institutional Capacity

While effective oversight, careful recruitment, vetting of serving officials and pragmatic training are necessary for the entire rule-of-law and transitional justice sector, they are not sufficient to effect lasting change and build strong, self-sustaining and trustworthy institutions. If anything, the United Nations has focused too much on training, which yields impressive but often misleading measures. Training 3,000 police in seven months” sounds good, but if those police are not managed properly, if their career paths depend on nepotism and not merit, or if they are paid little and months late and do not have vehicles or communication radios or even a change of uniform, then the training, vetting and oversight bodies will do little to enhance the rule of law or respect for human rights.

Successful rule-of-law reform hinges on institutional development of what have previously been dysfunctional, corrupt, bloated and distinctly user-unfriendly institutions riven by outside interference, favouritism and a complete lack of accountability and transparency. United Nations peacekeepers must devote much more attention and resources to issues like career development, transparency in administration, budgeting, fiscal oversight, planning, logistics and procurement institutional capacity-building in general.

Successful police or judicial reform is every bit as much about personnel management, established career paths and transparent disciplinary procedures as it is about human rights training and awareness campaigns or about improved crime-fighting equipment or computerized case management systems. Yet the former have often been overlooked in favour of the latter. For example, despite solid efforts to reform the police in the former

Yugoslav Republic of Macedonia and much training on human rights, ethnically weighted and politically partisan decisionmaking pervades all aspects of the police force. The United Nations especially must recognize the broader governance challenges when it comes to police reform in particular and rule-of-law reform in general. These institutions do not operate in a vacuum, and it is often the national political ethos and system of incentives and punishments that need reforming.

Tools developed for other areas of governance—diagnostic assessments of institutional strengths, sound data gathering and analysis, merit-based performance evaluations, measures to assess the impact of programs, leadership development, modern management practices, and budgetary oversight are as important to justice sector reform as are initiatives to improve customs regulations, tax collection, or other public services that the United Nations, the World Bank, the International Monetary Fund, or bilateral donors like the United States Agency for International Development, the United Kingdom's Department for International Development, the Canadian International Development Agency, or the Swedish Agency for International Development Cooperation typically support in their various good governance projects. Reform initiatives in the justice sector deserve no less rigor or strict accountability for producing measurable improvement.

Any reformed judiciary or police force will need help in strategic planning—how to budget, allocate resources, anticipate training and deployment needs, and identify specialized needs (forensics, crime lab, domestic violence intervention and counseling, tackling organized crime, trafficking in humans, drugs, etc.). United Nations peacekeeping operations should ensure that their rule-of-law teams include planning specialists and experts in administration and management, including personnel and finance. These areas, along with logistics and infrastructure, are often overlooked yet are pivotal to success.

Judicial independence also requires that the judicial system have the resources and tools necessary to function effectively. When peacekeepers are asked to assist in reforming judicial institutions, they must first help their local colleagues assess what resources exist and then determine those that may be required to bolster the operations of the judicial system. Because the issue of capacity is fundamental to efforts to transform a legal system, it is best to conduct an extensive assessment during the initial phase of a peacekeeping operation and develop, along with the host State, a strategic plan for reform. The United Nations, however, must work with local officials so that the strategic plan takes into account the government's

capacity to finance its judicial system over the medium and long term. The plan should also spell out its reconstruction and reform priorities to maximize harmonization with comparable efforts in law enforcement, the prison service, and public administration to ensure that the plan reflects broader political, cultural, religious, and other priorities for the host country.

Once reform projects are under way, peacekeeping officers are best placed to assess the impact of the assistance, communicate their findings to the authorities, and suggest modifications to the programs. For example, in Rwanda judicial affairs officers prepared a comprehensive study of the Rwandan justice system and evaluated the impact of assistance projects for a round table meeting of donors in Geneva in June 1996. The donors and the government used this study to plan future projects. In Haiti, MICIVIH observers noted that even after receiving training at the National Judges School, many judges continued to charge the public for issuing warrants or judgments. Because MICIVIH documented these cases, training in this area was reinforced, and the government realized it needed to make sure that basic supplies were regularly delivered to the courts—which was really a logistics and management problem and not one of corruption.

9.4 Terrorism and Armed Conflicts

Terrorism negates the fundamental principles of humanity as well as the essential principles and objectives of international humanitarian law (IHL). In this regard, acts of terrorism are condemned, irrespective of their perpetrators, be they committed in or outside an armed conflict, and are deeply distressing in their devastating impact on communities and individuals.

Indeed, every day there are dramatic consequences of the fight between states and non-state armed groups designated as terrorists, in particular in Africa and in the Levant. Irrespective of the claimed legitimacy of this fight or the causes espoused by or attributed to those involved therein, what is observed in the field is once again the civilian population bearing the brunt of armed violence. Cities are reduced to rubble, civilians are directly attacked, humanitarian and medical personnel, transports and infrastructures are targeted and prevented from fulfilling their functions, the civilian population is deprived of supplies essential for its survival through siege warfare, humanitarian access is denied, and, resulting from all of this, hundreds of thousands of people are internally displaced or have fled their country, leaving a home, a

job, a plot of land, or even close relatives behind. In the absence of a political solution, compliance with IHL and the fundamental values underpinning this body of law are required more than ever from all sides because the prohibition of acts of terrorism and other violations of the law are not just binding on non-state armed groups.

The recent actions taken by states against non-state armed groups designated as terrorists and the correlative counterterrorism discourse in both domestic and international fora have significantly contributed to a blurring of the lines between armed conflict and terrorism and their respective legal frameworks. This is further exacerbated by the fact that, often, counterterrorism instruments include situations of armed conflict in their scope of application. The resultant overlaps and contradictions between IHL and the legal instruments specifically designed to address terrorism is problematic. Counterterrorism norms may interfere with IHL's regulation of armed violence, notably by prohibiting conduct that is not unlawful under IHL, creating legal confusion and potentially adversely affecting some of the underlying principles of IHL. In this regard, one should carefully study the consequences of such interference and seek creative ways to ensure the integrity of IHL, thereby maintaining its rationale – which is needed more than ever in current armed conflicts.

The fight against terrorism may take various forms, including armed conflict. Determining when IHL applies to particular counterterrorism activities is not an easy enterprise. Not only because some states may tend to deny the applicability of IHL on the basis that non-state armed groups designated as terrorist organizations cannot be considered parties to an armed conflict. How, when, and where IHL applies to counterterrorism activities still raises important legal questions.

First of all, it is important to recall that any use of force against non-state armed groups designated as terrorist – or against members and affiliates thereof – is not necessarily synonymous with a situation of armed conflict governed by IHL. When armed force is used, only the facts on the ground are relevant for determining the legal classification of a situation of violence. Some situations may be classified as international armed conflicts, others as non-international armed conflicts, while various acts of violence may fall outside any armed classification. conflict due to lack of requisite nexus. In the view presented, this is also true for the fight against terrorism.

Another crucial question relating to IHL applicability is whether non-state armed groups designated as terrorists fulfill the organization criterion for classifying a situation as a non-international armed conflict. This is all the more difficult in view of the myriad of fluid, multiplying, and fragmenting armed groups that frequently take part in the fighting. Often, their structure is difficult to understand. In some cases, some form of leadership structure emerges at some point, claiming to unite different armed groups, often based on pledges of allegiances. This raises the question of what link needs to exist between different armed groups in order to consider formerly distinct entities as one party to an armed conflict. The same question also emerges with regard to different groups that join forces transnationally, such as different armed groups pledging allegiance to the Islamic State group or to Al-Qaeda.

The spillover of conflicts into neighboring countries, their geographical expanse, and their regionalization also appear to have become distinctive features of many contemporary armed conflicts involving non-state armed groups designated as terrorist. The transnational nature of such armed conflict involving a non-state armed group capable of operating in various countries – even non-contiguous ones – directly raises the question of IHL's territorial reach. This is still a much-debated area of the law – in particular when it comes to the applicability of IHL for military operations in the territory of non-belligerent States – that will certainly benefit from insights.

IHL has been sometimes described – wrongly in the ICRC's view – as a set of rules that hinders the efforts of states to efficiently address their security concerns and fails to provide adequate tools to deal with non-state armed groups designated as terrorists. It is highlighted that, in situations of armed conflict, IHL should not be considered an obstacle to the fight against terrorism. On the contrary, IHL can be a powerful tool at states' disposal while still providing important protections – complemented by human rights law – for those affected by the armed conflict between states against non-state armed groups designated as terrorists. This added value of IHL is significant in the fields of the use of force and detention.

10. External Interference in Law Enforcement

10.1. Political Interference

Treaties such as the International Covenant on Civil and Political Rights, which has been ratified by an absolute majority of states, establish legally binding obligations. A basic notion underlying the international legal framework is the right to remedy, which means that states need to establish a mechanism whereby people can seek redress if their rights have been violated. Article 2, paragraph 3, of the Covenant states: Each state party to the present covenant undertakes the following:

(a) To ensure that any person whose rights or freedoms as herein recognized are violated shall have an effective remedy, notwithstanding that the violation has been committed by persons acting in an official capacity;

(b) To ensure that any person claiming such a remedy shall have his right there to determined by competent judicial, administrative or legislative authorities or by any other competent authority provided for by the legal system of the State, and to develop the possibilities of judicial remedy;

(c) To ensure that the competent authorities shall enforce such remedies when granted.

The Principles relating to the status of national institutions (the Paris Principles) are intended to guide the status and functioning of national institutions for the protection and promotion of human rights, stating that the mandate of such institutions should be as broad as possible. Such institutions, whose names vary from country to country, play an important role as independent police oversight bodies. They typically deal with misconduct of all state officials rather than that of the police exclusively, and sometimes there are police-specific bodies such as a police ombudsman or a police complaints commission.

According to the Paris Principles, the responsibilities of a national institution for the protection and promotion of human rights should include submitting, upon request or on the institution's own initiative, opinions, recommendations, proposals and reports on any matters concerning the protection and promotion of human rights in relation to the following: any legislative or administrative provisions, as well as provisions relating to judicial organization,

intended to preserve and extend the protection of human rights; any situation of violation of human rights that it decides to take up; and the preparation of reports on the national situation with regard to human rights in general and on more specific matters. A further such responsibility is to draw the attention of the government to situations in any part of the country where human rights are violated and to submit to the government proposals for initiatives to put an end to such situations and, where necessary, express an opinion on the positions and reactions of the government. The composition of the national institution should reflect the plural society and guarantee independence. The national institutions should freely consider any questions falling within their competence, hear any person, and obtain any information necessary to make an assessment of situations falling within their competence and publicize their opinions and recommendations.

Preferably, commissioners must be appointed for a fixed time period only, with a strict procedure for their removal.

Criteria for independence:

- a. Complete discretion in the exercise of functions or powers
- b. Statutory underpinning
- c. Reporting to the parliament
- d. Independent funding
- e. Transparent process, based on merit, for the appointment of commissioners and staff

Independence is best served if commissioners and staff carry out their functions with the highest degree of integrity and professionalism. Commissioners in particular also need to “reflect the plural society” (as set out in the Paris Principles), meaning that ethnic and religious minority groups must be represented. Equal representation of men and women is also desirable.

The recruitment of new commissioners and investigators has important implications for the body’s perceived independence, with areas of particular importance being who decides on recruitment procedures and when to initiate new ones. Slack recruitment can indicate weak political commitment, as is also the case when oversight bodies have to operate without a chair or with less than the requisite number of commissioners for a considerable time.

Selecting the right staff officers who meet the criteria of independence presents a particular challenge. Newly established independent bodies often have to hire some police officers because of their unique experience in conducting investigations, which cannot be acquired otherwise. In such cases, it is recommended that the oversight body hire police officers from regions other than the one where it operates and, if possible, retired officers only.

Commissioners and staff need to be well-prepared to carry out their job. They need to have, or gain, a sound understanding of policing in order to avoid having unrealistic expectations or exercising undue sympathy for the police, resulting in a lack of impartiality vis-à-vis the police or the complainants. Additionally, such staff should receive gender-specific training and training on gender mainstreaming.

10.2. Foreign Influence

A nation's foreign influence takes hold of the law enforcement processes of another sovereign state, where it manipulates the latter's police, intelligence services, and courts as a means to secure its own interests and influence in strategic areas. Such foreign intervention in domestic law enforcement violates a fundamental norm in international law enshrined in *Article 2 of the Charter of the United Nations* that recognizes *sovereign equality of states, with all of its attendant duties not to interfere in the internal jurisdiction of any state. Notwithstanding the international prohibition, foreign influence remains a tactic utilized as a weapon in asymmetric warfare, geopolitical rivalries, and the destabilization of states.* In essence, foreign influence is the manipulation of the local police, intelligence services, and courts by an external power so as to promote its interests.

In the realm of law enforcement, foreign influence is used to safeguard the external state's personnel, agents, or geopolitical allies operating in another state. For example, if a state's operative from a developed country is arrested in a developing state for activities including espionage, subversion, and cross-border smuggling, the arresting state's powerful neighbor country will apply diplomatic and economic pressure to influence the local state to suspend proceedings, drop charges, or grant extraterritorial jurisdiction. Such pressures include the threat of withdrawal of bilateral military assistance, suspension of key bilateral trade deals, and tacit support for anti-government parties and movements. Faced with such threats, many

host countries' executives press their local prosecutors and judicial officers to drop charges, enter extradition pleas, or release foreign nationals who are apprehended.

Such scenarios underscore how interstate power can trump local law, creating avenues for the non-pursuit of justice.

Similarly, external states develop close ties and vested interests in local law enforcement agencies in less powerful neighbor states, which they then exploit to further illicit trans-border activities. In the border regions of volatile states, for instance, powerful neighboring countries often pay corrupt local border patrol officers and police chiefs for them to look the other way during large-scale smuggling operations, including weapons, fuels, and even personnel who become part of foreign-backed proxy forces in a host state. This lack of control allows foreign-backed rebel groups or militaries from neighboring countries to operate with impunity in their respective territories of destination, and the host country effectively loses control over the enforcement of its territorial laws and regulations.

In order to mitigate this threat of foreign interference with national laws, UNICRI needs to focus on building capacity in areas such as the establishment and strengthening of internal affairs divisions and counterintelligence capabilities that specifically target foreign recruitment into national law enforcement institutions. Similarly, there must be clearly defined diplomatic and economic repercussions that will apply to states that abuse their power by interfering with judicial processes and law enforcement agencies in smaller states in order to protect vulnerable states from such interference. In the long term, denying a sovereign state the right and ability to enforce laws within its territory renders it a source of instability for its neighborhood.

10.3. Economic Pressure

Perhaps the most systemic form of external disruption that law enforcement agencies can experience from outside forces is economic pressure exerted by large multinationals, international financial consortia, and powerful foreign investors. In today's interconnected economy, individual corporate entities possess financial leverage that often exceeds the national budgetary capacity of the developing states in which they seek to invest or extract resources.

Once these large corporate actors enter a developing state in search of natural resources, for the construction of infrastructure, or for manufacturing operations, they bring valuable capital with them. They also bring enormous bargaining power that they can (and do) use to undermine, nullify, or simply overcome the domestic regulatory authorities charged with enforcing laws that would diminish the firms' profits. This form of interference is manifest in cases concerning labor laws, environmental laws, and tax laws. For example, when a local environmental enforcement agency moves to penalize a multinational corporation that is systematically dumping waste into the local water supply, the company may issue an economic ultimatum.

They may threaten to abandon the project entirely, immediately plunging the region into an economic depression through massive job losses and collapsing state tax receipts. This 'blackmail' will often prompt politicians or police commanders to simply order the regulatory agency to ignore the environmental contamination by the offending multinational entity. While the domestic laws are still on the books, the economic pressure completely stymies enforcement. Similarly, economic coercion is often practiced via international investor-state dispute mechanisms and arbitration systems.

The plethora of bilateral investment agreements permit foreign corporations to initiate arbitration proceedings against states at private international tribunals in the event of an unexpected change in a national legal provision or an abrupt increase in enforcement actions that negatively impact a company's future profit outlook. The threat of a multi-billion dollar damage suit, a sum potentially large enough to bankrupt the treasury of a small state, often induces governments in poor states to refrain from enforcing their own consumer safety, public health, and environmental protection standards against foreign investment, a phenomenon termed the 'chilling effect' of investor-state litigation.

10.4. Cyber Interference

The latest form of external disruption that could cripple domestic law enforcement is cyber interference. The world's criminal justice systems are increasingly digitalizing; this, in turn, creates new holes of vulnerability that can be exploited with extreme ease by hostile state actors and international criminals alike.

This could manifest as attackers accessing and encrypting police files such as databases, which house the entire history of criminal activities, criminal records, the investigation into the latest case, and personnel data, which contains the fingerprints and images of suspected criminals. The ability to access such information would bring any domestic law enforcement agency to a grinding halt. The number one cause for interference in the sphere of cyber is ransomware, which may be aimed at both municipal authorities and police departments, with criminals encrypting law enforcement databases and extorting huge amounts of currency (in cryptocurrency) for the keys needed to unblock their records. It becomes impossible to check vehicle records and determine the warrants on a suspected criminal without access to their files, and several have already gone for weeks using their old handwritten databases while they waited for criminals to unblock them with their bitcoin or lose access forever, meaning they were able to elude the police with little effort.

In addition to ransomware attacks, malicious intelligence organizations employ sophisticated cyber-attacks to interfere with judicial proceedings. Hacking into prosecutor databases or court registries can enable the sabotage of criminal evidence, destruction of arrest warrants, or exposure of witness protection programs online. The leaking of undercover agent or major witness information, for example, will bring an immediate end to the active investigation or prosecution, as individuals are fearful of testifying at risk of their lives.

More subtly, foreign actors utilize interference to launch large-scale disinformational operations targeting the credibility of the court systems by propagating fake evidence or “deep-fake” police videos, destroying public trust in local enforcement officials and triggering civic disorder and the destabilization of the country. Moreover, new clouds and third-party information storage systems have exposed an entirely new space of cyber interference.

Many smaller nations store their core judicial and government information on servers residing in foreign countries or on servers owned by multinational technology corporations. Reliance on third-party cloud storage systems exposes sensitive criminal justice system files to the scrutiny of foreign courts, executives, and employees who may, on command of their foreign government or corporate principals, disable the file or turn its information over to foreign powers.

11. Human Rights Implications

11.1. Violations of Fundamental Human Rights

Human rights are indivisible and interdependent, and the consequences of corruption touch upon them all: civil, political, economic, social, and cultural, as well as the right to development. For example, corruption undermines a state's human rights obligation to maximize available resources for the progressive realization of rights recognized in Article 2 of the International Covenant on Economic, Social, and Cultural Rights. The corrupt management of public resources compromises the state's ability to deliver services, including health, education, and welfare, which are essential for the realization of economic, social, and cultural rights. Corruption leads to discriminatory access to public services in favor of those able to influence authorities, including by offering bribes. Economically and politically disadvantaged groups and persons suffer disproportionately in these circumstances because they are most dependent on public services but least able to influence state policies and corrupt officials.

Corruption can also affect the enjoyment of civil and political rights in all states, even long-established democracies, by weakening public institutions and eroding the rule of law. When corruption is prevalent, those in public positions fail to take decisions with the best interests of society in mind. As a result, corruption damages the legitimacy of regimes, leading to a loss of public support and trust for state and government institutions. When widespread, practices like electoral fraud, illicit funding of political parties, or even the perceived disproportionate influence of money in politics can erode confidence in governments.

In countries where corruption pervades governments and legal systems, law enforcement and legal reform are impeded by corrupt judges, lawyers, prosecutors, police officers,

investigators, and auditors. This can compromise the right to equality before the law and the right to a fair trial and especially undermine the access of disadvantaged groups to justice, as they cannot afford bribes and cannot trade influence for favorable judgments. Importantly, corruption in the rule-of-law system weakens the very accountability structures that are responsible for protecting human rights and contributes to a culture of impunity since illegal actions are not punished and laws are not consistently upheld.

The human rights case against corruption provides a foundation for rights-based advocacy against corruption for all with an interest in fighting the negative impacts of corruption on the eradication of poverty, sustainable development, and the enjoyment of all human rights, including the right to development.

11.2. Unequal Access to Justice

Access to justice is a basic principle of the rule of law. In the absence of access to justice, people are unable to have their voices heard, exercise their rights, challenge discrimination, or hold decision-makers accountable. The Declaration of the High-Level Meeting on the Rule of Law emphasizes the right of equal access to justice for all, including members of vulnerable groups, and reaffirms the commitment of Member States to taking all necessary steps to provide fair, transparent, effective, non-discriminatory, and accountable services that promote access to justice for all.

Delivery of justice should be impartial and non-discriminatory. In the Declaration of the High-Level Meeting on the Rule of Law, Member States highlighted the independence of the judicial system, together with its impartiality and integrity, as an essential prerequisite for upholding the rule of law and ensuring that there is no discrimination in the administration of justice.

In strengthening access to justice, the UN system works with national partners to develop national strategic plans and programs for justice reform and service delivery. UN entities support Member States in strengthening justice in areas including improving legal protection, legal awareness, and legal aid; civil society and parliamentary oversight; addressing challenges in the justice sector such as police brutality, inhumane prison conditions, lengthy pre-trial detention, and impunity for perpetrators of sexual and gender-based violence and

other serious conflict-related crimes; and strengthening linkages between formal and informal structures.

One of the major obstacles in accessing justice is the cost of legal advice and representation. Legal aid programs are a central component of strategies to enhance access to justice. The Declaration of the High-Level Meeting on the Rule of Law committed Member States to take all necessary steps to provide fair, transparent, effective, non-discriminatory, and accountable services that promote access to justice for all, including legal aid. In December 2012, the General Assembly unanimously adopted the UN Principles and Guidelines on Access to Legal Aid in Criminal Justice Systems, the first international instrument on the right to legal aid. The UN Principles and Guidelines establish minimum standards for the right to legal aid in criminal justice systems and provide practical guidance on how to ensure access to effective criminal legal aid services.

Overview of Overall Scores and Rankings

The table below shows the overall scores and rankings of the *WJP Rule of Law Index 2025* in alphabetical order. Scores range from 0 to 1, with 1 indicating the strongest adherence to the rule of law.

■ Negative Change
 ■ Positive Change

Country/Jurisdiction	Overall Score*	% Change in Overall Score*	Global Rank	Change in Global Rank†
Afghanistan	0.31	-2.7%	142	-1
Albania	0.49	1.2%	87	3
Algeria	0.49	-1.1%	88	-3
Angola	0.42	-0.8%	113	3
Antigua and Barbuda	0.64	0.1%	38	-1
Argentina	0.54	-1.0%	65	-1
Australia	0.80	-0.2%	11	0
Austria	0.79	0.1%	12	1
The Bahamas	0.58	-0.9%	51	0
Bangladesh	0.39	1.3%	125	3
Barbados	0.66	0.3%	33	2
Belarus	0.44	-0.4%	105	1
Belgium	0.78	0.0%	17	0
Belize	0.50	0.3%	82	1
Benin	0.47	-0.9%	94	0
Bolivia	0.37	-0.6%	131	1
Bosnia and Herzegovina	0.52	0.1%	70	2
Botswana	0.60	1.0%	50	2
Brazil	0.50	1.1%	78	3
Bulgaria	0.55	-1.0%	61	-1
Burkina Faso	0.45	-2.0%	101	-2
Cambodia	0.31	0.0%	141	1
Cameroon	0.36	-0.3%	134	0
Canada	0.79	-0.4%	13	-1
Chile	0.66	-0.3%	35	1
China	0.48	0.8%	92	4
Colombia	0.47	-1.8%	95	-3
Congo, Dem. Rep.	0.34	-1.2%	136	1
Congo, Rep.	0.40	-0.7%	123	-1
Costa Rica	0.68	0.0%	28	1
Côte d'Ivoire	0.44	-1.4%	106	-1
Croatia	0.61	-0.5%	46	0
Cyprus	0.67	0.3%	30	1
Czechia	0.74	-0.1%	20	0
Denmark	0.90	-0.2%	1	0
Dominica	0.58	0.1%	54	0
Dominican Republic	0.50	2.1%	76	11
Ecuador	0.46	-1.4%	99	-1
Egypt, Arab Rep.	0.35	-1.3%	135	1
El Salvador	0.42	-2.7%	114	-2
Estonia	0.82	0.2%	10	0
Ethiopia	0.36	-2.4%	132	-1
Finland	0.87	-0.5%	3	0
France	0.72	-0.1%	22	0
Gabon	0.40	1.3%	122	1
The Gambia	0.49	-0.8%	89	-1
Georgia	0.58	-2.4%	52	-2
Germany	0.83	-0.1%	6	-1
Ghana	0.54	-0.5%	63	0
Greece	0.60	-0.8%	48	0
Grenada	0.60	-0.8%	49	0
Guatemala	0.44	-0.9%	110	-2
Guinea	0.41	-0.5%	117	3
Guyana	0.50	-0.1%	80	-2
Haiti	0.32	-2.2%	140	0
Honduras	0.41	-1.3%	116	1
Hong Kong SAR, China	0.72	-0.5%	24	-1
Hungary	0.50	-2.0%	79	-5
India	0.49	-1.7%	86	-6
Indonesia	0.52	-0.7%	69	0
Iran, Islamic Rep.	0.38	-0.8%	128	1
Ireland	0.82	0.4%	8	1
Italy	0.66	-0.5%	34	-2
Jamaica	0.57	-0.1%	57	-2
Japan	0.78	-0.3%	15	-1
Jordan	0.55	0.6%	62	0
Kazakhstan	0.54	0.0%	66	0
Kenya	0.45	-0.5%	102	1

* Scores are rounded to two decimal places and percentage changes in score are rounded to one decimal place.

† The change in rankings was calculated by comparing the positions of the 142 countries and jurisdictions measured in the 2024 Index with the rankings of the same 142 countries and jurisdictions in 2025, exclusive of the one new addition to the 2025 Index, Qatar.

Negative Change					Positive Change									
Country/Jurisdiction	Overall Score*	% Change in Overall Score*	Global Rank	Change in Global Rank†	Country/Jurisdiction	Overall Score*	% Change in Overall Score*	Global Rank	Change in Global Rank†	Country/Jurisdiction	Overall Score*	% Change in Overall Score*	Global Rank	Change in Global Rank†
Korea, Rep.	0.74	0.4%	19	0	New Zealand	0.83	0.0%	5	1	St. Kitts and Nevis	0.63	-0.5%	40	-2
Kosovo	0.56	0.4%	59	0	Nicaragua	0.33	-1.5%	139	-1	St. Lucia	0.62	-0.3%	43	0
Kuwait	0.58	-0.7%	53	0	Niger	0.42	-2.7%	115	0	St. Vincent and the Grenadines	0.62	-0.2%	42	2
Kyrgyz Republic	0.45	-1.1%	104	-2	Nigeria	0.41	0.3%	120	1	Sudan	0.34	-4.4%	137	-2
Latvia	0.73	0.1%	21	0	North Macedonia	0.54	1.3%	64	4	Suriname	0.49	0.3%	84	2
Lebanon	0.44	0.1%	107	2	Norway	0.89	-0.2%	2	0	Sweden	0.85	-0.5%	4	0
Liberia	0.44	0.0%	108	2	Pakistan	0.37	-2.3%	130	0	Tanzania	0.46	-1.2%	98	-1
Lithuania	0.77	0.1%	18	0	Panama	0.52	0.2%	73	0	Thailand	0.50	1.0%	77	2
Luxembourg	0.83	0.0%	7	0	Paraguay	0.45	-1.0%	100	1	Togo	0.43	-2.9%	111	-4
Madagascar	0.43	0.7%	112	1	Peru	0.48	-1.2%	93	-2	Trinidad and Tobago	0.51	-0.1%	75	0
Malawi	0.52	0.1%	71	0	Philippines	0.46	0.4%	97	3	Tunisia	0.49	-2.7%	85	-8
Malaysia	0.57	0.0%	56	0	Poland	0.66	0.4%	32	1	Türkiye	0.41	-1.9%	118	0
Mali	0.39	-2.2%	126	-1	Portugal	0.67	-0.5%	29	-1	Uganda	0.38	-1.0%	127	0
Malta	0.67	-0.2%	31	-1	Qatar	0.62	-	41	-	Ukraine	0.48	-0.7%	90	-1
Mauritania	0.36	-0.5%	133	0	Romania	0.61	-1.2%	44	-2	United Arab Emirates	0.64	0.7%	37	2
Mauritius	0.60	0.0%	47	0	Russian Federation	0.41	-4.9%	119	-5	United Kingdom	0.78	-0.1%	14	1
Mexico	0.40	-2.8%	121	-2	Rwanda	0.63	-0.1%	39	1	United States	0.68	-2.8%	27	-1
Moldova	0.53	-1.1%	68	-3	Senegal	0.56	1.6%	58	3	Uruguay	0.72	-0.2%	23	1
Mongolia	0.53	-0.4%	67	0	Serbia	0.47	-1.8%	96	-1	Uzbekistan	0.50	0.5%	81	3
Montenegro	0.57	0.4%	55	2	Sierra Leone	0.44	1.4%	109	2	Venezuela, RB	0.26	-0.4%	143	0
Morocco	0.48	0.4%	91	2	Singapore	0.78	0.1%	16	0	Vietnam	0.50	-0.2%	83	-1
Mozambique	0.37	-3.9%	129	-3	Slovak Republic	0.64	-2.3%	36	-2	Zambia	0.45	-0.5%	103	1
Myanmar	0.34	0.2%	138	1	Slovenia	0.68	-0.9%	26	1	Zimbabwe	0.39	-1.0%	124	0
Namibia	0.61	-0.5%	45	0	South Africa	0.56	-0.7%	60	-2					
Nepal	0.52	-0.3%	72	-2	Spain	0.71	-0.6%	25	0					
Netherlands	0.82	-0.7%	9	-1	Sri Lanka	0.51	1.1%	74	2					

The 2025 Rule of Law Index reveals wide variation in rule of law performance across countries. While some countries are still scoring high overall and holding top global rankings, many others are still in the middle or lower tiers of the index," the data indicates. The score changes from the previous year also show that the rule of law is not static. The positive changes indicate improvements in several countries, while others have suffered declines.

11.3. Abuse of Authority

In the performance of their duty, law enforcement officials shall respect and protect human dignity and maintain and uphold the human rights of all persons.

11.3.1. Article 3

Law enforcement officials may use force only when strictly necessary and to the extent required for the performance of their duty.

This provision emphasizes that the use of force by law enforcement officials should be exceptional; while it implies that law enforcement officials may be authorized to use force as is reasonably necessary under the circumstances for the prevention of crime or in effecting or assisting in the lawful arrest of offenders or suspected offenders, no force going beyond that may be used.

National law ordinarily restricts the use of force by law enforcement officials in accordance with a principle of proportionality. It is to be understood that such national principles of proportionality are to be respected in the interpretation of this provision. In no case should this provision be interpreted to authorize the use of force that is disproportionate to the legitimate objective to be achieved.

The use of firearms is considered an extreme measure. Every effort should be made to exclude the use of firearms, especially against children. In general, firearms should not be used except when a suspected offender offers armed resistance or otherwise jeopardizes the lives of others and less extreme measures are not sufficient to restrain or apprehend the suspected offender. In every instance in which a firearm is discharged, a report should be made promptly to the competent authorities.

11.3.2. Article 4

Matters of a confidential nature in the possession of law enforcement officials shall be kept confidential, unless the performance of duty or the needs of justice strictly require otherwise.

By the nature of their duties, law enforcement officials obtain information that may relate to private lives or be potentially harmful to the interests and especially the reputation of others. Great care should be exercised in safeguarding and using such information, which should be disclosed only in the performance of duty or to serve the needs of justice. Any disclosure of such information for other purposes is wholly improper.

11.3.3. Article 5

No law enforcement official may inflict, instigate, or tolerate any act of torture or other cruel, inhuman, or degrading treatment or punishment, nor may any law enforcement official invoke superior orders or exceptional circumstances such as a state of war or a threat of war, a threat to national security, internal political instability, or any other public emergency as a justification for torture or other cruel, inhuman, or degrading treatment or punishment.

This prohibition derives from the Declaration on the Protection of All Persons from Being Subjected to Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, adopted by the General Assembly, according to which it is an offense to human dignity and shall be condemned as a denial of the purposes of the Charter of the United Nations and as a violation of the human rights and fundamental freedoms proclaimed in the Universal Declaration of Human Rights and other international human rights instruments.

Law enforcement officials, in carrying out their duty, shall, as far as possible, apply non-violent means before resorting to the use of force and firearms. They may use force and firearms only if other means remain ineffective or without any promise of achieving the intended result.

Whenever the lawful use of force and firearms is unavoidable, law enforcement officials shall:

(a) Exercise restraint in such use and act in proportion to the seriousness of the offence and the legitimate objective to be achieved;

(b) Minimize damage and injury, and respect and preserve human life;

Governments shall ensure that arbitrary or abusive use of force and firearms by law enforcement officials is punished as a criminal offense under their law.

Exceptional circumstances such as internal political instability or any other public emergency may not be invoked to justify any departure from these basic principles.

Governments and law enforcement agencies shall establish effective reporting and review procedures for all incidents referred to in principles 6 and 11. For incidents reported pursuant to these principles, governments and law enforcement agencies shall ensure that an effective review process is available and that independent administrative or prosecutorial authorities are in a position to exercise jurisdiction in appropriate circumstances.

Governments and law enforcement agencies shall ensure that superior officers are held responsible if they know, or should have known, that law enforcement officials under their command are resorting, or have resorted, to the unlawful use of force and firearms, and they did not take all measures in their power to prevent, suppress, or report such use.

11.4. Threats to Civilian Safety and Security

One of the main purposes of the United Nations, as articulated in article 1 of the Charter, is to maintain international peace and security by taking effective collective measures for the prevention and removal of threats to the peace and for the suppression of acts of aggression or other breaches of the peace. The rule of law ensures that international law and the principles of justice apply equally to all states and are equally adhered to.

When situations of armed conflict do occur, the protection of civilians is a United Nations priority. Any protection activity, be it physical, political, or through the establishment of a protective environment, must be based on the rule of law and aim to give the applicable laws practical relevance in difficult circumstances.

To protect civilians better, member states must adhere to the relevant international treaties, include their provisions in national legislation, and establish well-functioning institutions and internal controls.

In other situations of violence and insecurity, a strong rule of law, which protects human rights, helps prevent and mitigate violent crime and conflict by providing legitimate processes for the resolution of grievances and disincentives for crime and violence.

Establishing rule of law institutions is vital to ensuring immediate security and the necessary stability for peacebuilding to take root. Strong justice and corrections institutions, together with accountable police and law enforcement agencies, which fully respect human rights, are critical for restoring peace and security.

Through its peacekeeping operations, the United Nations aims to address the situation of those individuals and communities most affected by conflict, with the overarching goal of assisting national political processes, conflict resolution, and stabilization. Peacekeeping operations assist countries to strengthen the rule of law by restoring and maintaining security, protecting civilians, paving the way to peacebuilding, reconstructing communities, and creating the enabling conditions for sustainable peace.

Before 1949, the Geneva Conventions had protected wounded, sick, shipwrecked, and captured combatants. The so-called “civilians’ convention” recognized the changing nature of warfare and established legal protections for anyone not belonging to armed forces or armed groups. These protections also applied to civilians’ property.

IHL prescribes that civilians under the power of enemy forces must be treated humanely in all circumstances, without discrimination. They must be protected against all forms of violence and degrading treatment, including torture and murder. Moreover, if subject to prosecution, civilians are entitled to a fair trial complying with all essential judicial guarantees.

While IHL protects all civilians without discrimination, certain groups are singled out for special mention. In wartime, women and children, the elderly, and the sick are highly vulnerable. So too are those who flee their homes and become internally displaced or refugees.

The protection of civilians provided by the Geneva Conventions and Additional Protocols is extensive. The problem of the past 50 years has been application. Neither states nor non-state armed groups have adequately upheld their obligations. Civilians continue to suffer excessively in almost every armed conflict.

In some conflicts, civilians have been specifically targeted and subjected to terrible atrocities. This ignores the very basis of the Geneva Conventions: respect for human life. That is why we continue to press states to comply with and ensure compliance with the principles of IHL, especially the protection of civilians.

12. Question To Be Addressed

12.1. The Transnational Enforcement Vacuum (Preventative vs. Reactive Law Enforcement)

The primary operational obstacle in contemporary transnational law enforcement is the growing structural gap between fluid, cross-border criminal networks and localized judicial power. Contemporary criminal organizations operate dynamically across digital environments and shifting geographic borders; conversely, formal law enforcement agencies remain strictly bound by territorial sovereignty. This friction creates an operational sanctuary for illicit networks. Traditional mutual legal assistance treaties require extensive bureaucratic channels; these mechanisms often take months to execute. During this delay, illicit assets are laundered through decentralized networks, and digital evidence is deleted or encrypted.

It must be asked whether traditional sovereignty-based frameworks for police cooperation are inherently obsolete or if they can be adapted to match the velocity of modern transnational crime. Specifically, can international law enforcement transition from a reactive model to a preventative model without infringing upon national criminal codes? Furthermore, the issue involves the evidentiary standards of different states. Evidence collected by an agency in one jurisdiction often fails to meet the strict admissibility criteria of courts in another jurisdiction. This dynamic leads to collapsed prosecutions. The committee must determine if a standardized protocol for cross-border digital forensics can be integrated into international frameworks to bridge this procedural divide.

12.2. Jurisdictional Friction vs. Shared Security

The conflict between national sovereignty and universal law enforcement cooperation presents a structural contradiction within global security architectures. Article 2(1) of the UN Charter protects states from foreign interference; yet modern security threats require immediate cross-border interventions. When a state lacks the technical capacity or political will to dismantle a criminal enterprise within its borders, neighboring states face direct, unmitigated security risks. Proponents of absolute sovereignty view unauthorized cross-border digital investigations or interceptive operations as judicial imperialism. They argue that bypassing local consent undermines the core tenets of international law.

Conversely, advocates for collective security argue that sovereignty cannot be used as a shield for criminal impunity. The resolution of this tension requires a clear framework defining when a state's failure to police its own territory allows for collaborative or extraterritorial law enforcement interventions. Can an international body authorize hot-pursuit operations into a non-consenting state's digital or physical jurisdiction when a severe threat is imminent? Additionally, this friction complicates joint investigation teams. Currently, officers operating in foreign territories lack executive police powers, such as the power of arrest. The committee must evaluate whether a limited, conditional model of shared executive authority can exist under strict international oversight.

12.3. The Limits of Operational Capacity

Establishing the precise boundaries of international law enforcement assistance is critical to prevent system overload. If every minor domestic infraction triggered an international enforcement response, global resources would collapse under the volume of requests. There must be a strict threshold based on the severity, complexity, and transnational impact of the crime. While current frameworks prioritize human trafficking, cyber warfare, and high-level corruption, defining the boundaries of these categories remains difficult. For instance, determining whether a localized cyber attack qualifies as a transnational security threat or a domestic crime alters the legal basis for foreign assistance.

Furthermore, operational boundaries must account for human rights standards. When international agencies share operational intelligence with states that utilize capital punishment, torture, or arbitrary detention, the providing agency risks legal and moral complicity. It remains to be determined what specific procedural safeguards must be implemented to protect human rights without paralyzing operational intelligence sharing. Can intelligence dissemination be made conditional on the recipient state providing verifiable guarantees of due process? The committee must also address the issue of resource disparities. Developing nations often lack the encryption technologies and secure communication networks required to participate in global operations, creating weak links in the international enforcement chain.

12.4. The Asset Recovery Disconnect (The Financial Obstacle)

The recovery of illicit financial flows represents the final frontier of transnational justice. Even when law enforcement successfully disrupts a criminal network and identifies illicit funds, the actual seizure, forfeiture, and repatriation of those assets face massive legal barriers. International law maintains a strict distinction between the temporary freezing of assets and their final confiscation. Sovereign safe havens, shell companies, and complex corporate structures allow criminal actors to obscure the true origins of wealth. Financial institutions often cite domestic privacy laws and banking secrecy regulations to resist foreign forfeiture orders.

This dynamic ensures that criminal enterprises retain their financial power even after their leadership is compromised, allowing them to rebuild rapidly. Resolving this financial obstacle requires a standardized global framework that automatically strips asset protection from funds linked to verified transnational crimes. Should the international community implement a non-conviction-based asset forfeiture model on a global scale? Such a model shifts the burden of proof to the asset holder to demonstrate the legitimate source of their wealth. Additionally, the repatriation process itself causes diplomatic disputes. Tensions frequently arise between the state where the crime occurred and the state where the assets were seized regarding how the recovered funds should be allocated and managed.

13. Bibliography

- Canadian Centre for Cyber Security. (2025).** *Ransomware Threat Outlook 2025-2027: National Baseline Assessment*. Communications Security Establishment. <https://www.cyber.gc.ca/en/guidance/ransomware-threat-outlook-2025-2027>
- Karakoç, M. (2023).** Cybersecurity Governance at the State and Local Level: The Case of Maryland. *Journal of Security Studies and National Security*, 12(2), 112–129. <https://dergipark.org.tr/en/pub/gcd/article/1868135>
- Gaukrodger, D. (2012).** *Investor-State Dispute Settlement: A Scoping Paper for the Investment Policy Community*. OECD Working Papers on International Investment, 2012/02, OECD Publishing. https://uncitral.un.org/sites/default/files/media-documents/uncitral/en/isds_scoping_paper.pdf
- Moehlecke, C., Thrall, C., & Wellhausen, R. L. (2023).** Global Value Chains as a Constraint on Sovereignty: Evidence from Investor–State Dispute Settlement. *International Studies Quarterly*, 67(1), sqad007. <https://doi.org/10.1093/isq/sqad007>
- Kalfoglou, S., & Yükseloğlu, E. H. (2024).** Crime Knows No Borders: The Necessity of International Police Cooperation. *Lectio Socialis*, 8(1), 45–56. <https://doi.org/10.47478/lectio.1492496>
- Paun, C. (2015).** *Globalization of Law Enforcement: A Study of Transnational Public-Private Partnerships Against Intellectual Property Crimes* (Doctoral dissertation, University of Konstanz). Deutsche Nationalbibliothek. <https://d-nb.info/1072047276/34>
- United Nations Office on Drugs and Crime. (2004).** *Global Programme Against Corruption: UNODC Anti-Corruption Toolkits and Standards*. United Nations Publications. <https://www.unodc.org/pdf/crime/gpacpublications/cicp3.pdf>

Acquaah, G. (2003). Public international law, international human rights law, and international humanitarian law. *European Journal of International Law*, 14(5), 953, 971.
<https://academic.oup.com/ejil/article/14/5/953/463170>

Fordham International Law Journal. (1987). International law enforcement. *Fordham International Law Journal*, 11(2).
<https://ir.lawnet.fordham.edu/cgi/viewcontent.cgi?article=1278&context=ilj>

United Nations Office on Drugs and Crime. (n.d.). Wildlife crime module 3 key issues: Challenges for law enforcement.
<https://www.unodc.org/cld/ru/education/tertiary/wildlife-crime/module-3/key-issues/challenges-for-law-enforcement.html>

Geneva Academy of International Humanitarian Law and Human Rights. (2014). The human rights case against corruption. United Nations Digital Library.
<https://digitallibrary.un.org/record/761279/files/HRCASEAGAINSTCORRUPTION.PDF>

Geneva Centre for Security Sector Governance. (2021). DCAF criminal justice reform and anti-corruption report. DCAF.
https://www.dcaf.ch/sites/default/files/publications/documents/DCAF_EBLS_Corruption_Report_EN.pdf

International Committee of the Red Cross. (2023). Terrorism, counter-terrorism, and international humanitarian law. ICRC.
<https://www.icrc.org/en/document/terrorism-counter-terrorism-and-international-humanitarian-law>

International Committee of the Red Cross. (2024). Protected persons and civilians. ICRC.
<https://www.icrc.org/en/law-and-policy/protected-persons-civilians>

Office of the United Nations High Commissioner for Human Rights. (1979). Code of conduct for law enforcement officials. OHCHR.
<https://www.ohchr.org/en/instruments-mechanisms/instruments/code-conduct-law-enforcement-officials>

Office of the United Nations High Commissioner for Human Rights. (1990). Basic principles on the use of force and firearms by law enforcement officials. OHCHR.

<https://www.ohchr.org/en/instruments-mechanisms/instruments/basic-principles-use-force-and-firearms-law-enforcement>

Office of the United Nations High Commissioner for Human Rights. (2006). Mapping the rule of law. United Nations Publications.
<https://www.ohchr.org/sites/default/files/Documents/Publications/RuleoflawMappingen.pdf>

Skarbek, D. (2021). The political economy of law enforcement. ResearchGate.
https://www.researchgate.net/publication/349806268_The_Political_Economy_of_Law_Enforcement

United Nations. (n.d.). Access to justice and rule of law institutions. United Nations Rule of Law.
<https://www.un.org/ruleoflaw/thematic-areas/access-to-justice-and-rule-of-law-institutions/access-to-justice/>

United Nations. (n.d.). Security sector reform and the rule of law. United Nations Rule of Law. <https://www.un.org/ruleoflaw/thematic-areas/security/>

United Nations Interregional Crime and Justice Research Institute. (n.d.). About UNICRI: UNICRI. <https://unicri.org/index.php/about-unicri>

United Nations Office on Drugs and Crime. (2020). Implementation guide and evaluative framework for article 11. UNODC.
https://www.unodc.org/documents/evaluation/Evaluative_Framework_for_Article_11_-_English_Revised_2020.pdf

World Justice Project. (2025). WJP rule of law index. World Justice Project.
<https://worldjusticeproject.org/rule-of-law-index/global>